

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**ORDER NO. 17: INITIAL DETERMINATION GRANTING MOTION FOR
PARTIAL TERMINATION OF CERTAIN ASSERTED CLAIMS**

(September 9, 2026)

Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. move for partial termination of the investigation as to all asserted claims of U.S. Patent No. 10,945,677. Motion Docket No. 1478-19 (EDIS Doc. ID 894192). Samsung represents that respondents do not oppose. *Id.* at 1.

“Any party may move at any time prior to the issuance of an initial determination on violation of section 337 ... to terminate an investigation in whole or in part ... on the basis of withdrawal of the complaint or certain allegations contained therein.” 19 C.F.R. § 210.21(a)(1). Samsung states that “there are no agreements, written or oral, express or implied, between the parties concerning the subject matter of this Investigation.” Mot. at 3 and 19 C.F.R. § 210.21(a)(1) (“A motion for termination of an investigation based on withdrawal of the complaint ... shall contain a statement that there are no agreements, written or oral, express or implied between the parties concerning the subject matter of the investigation,” if none exist). It also asserts that “[p]ublic policy supports termination of the withdrawn claims to conserve public and private resources” and that “there are no extraordinary circumstances that would justify denying termination in part as to the withdrawn Claims.” Mot. at 3.

Motion No. 1478-19 is GRANTED. Samsung continues to assert the following claims:¹

U.S. Patent No.	Asserted Claims
10,642,359	1 and 4
10,231,675	13 and 15
10,978,789	7 and 9

This initial determination shall become the determination of the Commission unless a party files a petition for review or the Commission orders review on its own. 19 C.F.R. § 210.42(h).

SO ORDERED.



Doris Johnson Hines
Administrative Law Judge

¹ Samsung continues to state that “[a]t the time of institution, this Investigation [also] involved” claim 6 of the ’789 patent, and that claim 6 “remain[s] in this Investigation.” Mot. at 1 and 2. As noted before, that is incorrect. Order No. 12 at 2, n.1 (EDIS Doc. ID 889677). Neither Samsung’s complaint nor the Notice of Institution identified claim 6 as an asserted claim. Amended Complaint at 1, 7, and 8 (¶¶ 1, 30, and 31) (EDIS Doc. ID 867832) and 91 Fed. Reg. 2153.